

		In the eighth cause of action for account stated, plaintiff alleges that defendants owe money from previous financial transactions involving payment for health care services performed by plaintiff for the benefit of defendants and their members. (FAC, ¶ 139.) Plaintiff alleges that defendants, through their words and conduct, agreed that the amount plaintiff claimed to be due from defendants was the correct amount owed for each claim for testing. (FAC, ¶ 141.) Again, these conclusions are not supported by the allegations in the FAC. The demurrers to the fifth, sixth, seventh, and eighth causes of action are SUSTAINED with leave to amend. <i>Demurring parties to give notice.</i>
11.	Boren v. Manly, Stewart & Finaldi 25-1524761	(Off calendar)
12.	Pope v. Hyundai Motor America 25-1471444	Although there are deficiencies in Hyundai Motor America's ["HMA"] Notice of Motion for Judgment on the Pleadings, the Court construes the Motion to be one for judgment on the pleadings as to each and all causes of action of the Complaint. On that basis, the Motion is DENIED. Reading the Complaint liberally, as the Court must, plaintiff alleges two types of claims. One type is violations of <i>Civil Code</i> §1793.2 in connection with the alleged breach of contractual warranty obligations entered into by HMA. The other type is a claim that plaintiff was fraudulently induced to agree to the purchase her vehicle by fraudulent concealment of facts about its condition. Hereafter, the first type of claim will be called "the contract claims." The second type will be called "the tort claim." With respect to the contract claims, HMA makes two arguments. The first is that the claims are barred by the statute of limitations. This argument is unavailing. The statute of limitations is not an element of a cause of action. [<i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 807] It is an affirmative defense upon which HMA has the burden of proof. [See, <i>CACI 338</i>; <i>CACI 454</i>] In the context of this motion, HMA has the initial burden to identify the applicable SOLs. Dates alleged in a complaint may show a cause of action is barred by the statute of limitations. [<i>Iverson, Yoakum, Papiano & Hatch v. Berwald</i> (1999) 76 CA4th 990, 995, 90 CR2d 665, 669] However, the running of the statute of limitations must appear "clearly and affirmatively" from the face of the complaint. It is not enough that the complaint might be time-barred. [<i>Stueve Bros. Farms, LLC v. Berger Kahni</i> (2013) 222 Cal.App. 4th 303, 313] Given the absence of both dates alleged in the Complaint and identification of specific statutes of limitations, the clear and affirmative standard has not been met. The second argument is that plaintiff has not met the enhanced standard for pleading statutory claims. HMA cites cases standing for the proposition that that allegations that do not meet the enhanced pleading

		standard are uncertain under <i>CCP §430.10(f)</i>. The subdivision does not permit a motion for judgment on the pleadings on the grounds of uncertainty. [<i>CCP §438(c)(1)(B)(1)</i> and (2)] This argument is not addressed further. With respect to the tort claims, HMA also makes two arguments. One is that the “economic loss rule” bars plaintiff’s claims for fraud. The other is that the claims for do not allege facts sufficient to constitute a cause of action. Under the holding in <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 838, the economic loss rule does not apply to claims for fraudulent inducement caused by fraudulent concealment. Tort damages are permitted in a contract case where the contract is fraudulently induced. [<i>Id.</i> at pp. 839-840, citing <i>Robinson Helicopter Co., Inc v. Dana Corporation</i> (2004) 34 Cal.4th 979, 990] On facts similar to the ones alleged here, the economic loss rule was held not to be applicable to fraud claims. As to the sufficiency of the facts alleged here, the Court has reviewed the facts of this Complaint to the ones described in <i>Dhital</i>. The <i>Dhital</i> court found the allegations similar to the one here to be sufficient. As such, the Court comes to the same conclusion here. <i>Moving party to give notice.</i>
13.	Bush v. California Cemetery and Funeral Services, LLC 24-1438792	Before the Court is a motion for summary judgment or in the alternative, summary adjudication filed by defendant Service Corporation International (Defendant or SCI) on the Complaint of plaintiff Kesaia Bush (Plaintiff). For the reasons set forth below the motion for summary judgment is GRANTED. The new evidence submitted with the reply is untimely and not considered. (<i>Code of Civ. Proc. § 437c, subd. (b)(4).</i>) Defendant’s request for judicial notice is GRANTED. (Evid. Code § 452, subd. (d).) Plaintiff’s evidentiary objections are OVERRULED as to nos. 1-5. The Court declines to rule on nos. 6-9. (<i>Code of Civ. Proc. § 437c, subd. (q).</i>) Defendant’s evidentiary objections to the declaration of Sandy T. Luu and Kesaia Bush are SUSTAINED as to nos. 1, 2, 38-43 based on relevance and OVERRULED as to nos. 3-42. The Court declines to rule on Defendant’s other “evidentiary” objections, which are procedurally improper. Written objections must go to specific evidence, not facts stated in the separate statement or response to separate statement. (<i>Cal. Rules of Court, rule 3.1354(b).</i>)